

**CV-26-007394 IN RE: GUZMAN, MARTHA COVARRUBIAS DE – Petitioner’s
Petition for Approval for Transfer of Structured Settlement Payment Rights
[Cal. Ins. Code 10139.5 (2010)] - HEARING REQUIRED.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court needs more information before determining whether the proposed transfer is fair, reasonable, and in the payee's best interest. Specifically, the Court notes that the Petition and supporting declarations fail to sufficiently address the issue of hardship, Ms. Guzman's declination of professional financial advice, and her consideration of reasonable alternatives. In view of the Respondent's identification of the BIFCO program which may afford better terms for Ms. Guzman herein, the Court wishes to discuss these issues and the potential effects of the contemplated transfer with Ms. Guzman at the time of the hearing. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

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